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STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3327 By: Osburn of the House

HOUSE BILL 3327 By: Osburn of the House

and

Daniels of the Senate

AS INTRODUCED

An Act relating to the State Board of Education; amending 70 O.S. 2021, Section 3-101, as amended by Section 1, Chapter 182, O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-101), which relates to board member appointments; increasing the number of board members; changing the appointing authority for some members; establishing for-cause removal procedures; eliminating reference to service at the pleasure of the Governor; modifying vacancy procedures; vacating current members; directing initial appointments; providing initial appointment terms; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-101, as amended by Section 1, Chapter 182, O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-101), is amended to read as follows:

Section 3-101. A. The State Board of Education shall consist of ~~seven (7)~~ nine (9) members. The State Superintendent of Public

1 Instruction shall be a member and the chairperson of the Board. ~~The~~
2 ~~remaining six members shall be appointed by the Governor by and with~~
3 ~~the advice and consent of the Senate. Except as otherwise provided~~
4 ~~for in subsection B of this section, upon assuming office each~~
5 ~~Governor shall appoint one member from each congressional district~~
6 ~~and one member from the state at large.~~ Four members shall be
7 appointed by the Governor, two members shall be appointed by the
8 Speaker of the House of Representatives, and two members shall be
9 appointed by the President Pro Tempore of the Senate. Each
10 appointment shall be made to take effect on April 2. The term of
11 each appointed member shall be four (4) years. Appointed members
12 shall serve until a successor is appointed. Appointed members shall
13 ~~serve at the pleasure of the Governor~~ only be removed for cause by
14 their appointing authority. Upon the occurrence of a vacancy the
15 same shall be filled ~~by the Governor, subject to confirmation by the~~
16 ~~Senate at the next session of the Legislature~~ in the same manner as
17 the original appointment. The appointment to fill a vacancy shall
18 be made for the unexpired term.

19 B. On the effective date of this act, all appointed positions
20 of the current State Board of Education shall be deemed vacant and
21 the terms of persons serving on the Board shall be deemed
22 terminated. The Governor, the Speaker of the House of
23 Representatives, and the President Pro Tempore shall each make their
24 initial appointments pursuant to the provisions of this subsection

1 within thirty (30) days of the effective date of this act, ~~with one~~
2 ~~member appointed from each congressional district and one member~~
3 ~~appointed from the state at large. The appointments shall be~~
4 ~~subject to confirmation by the Senate at the next session of the~~
5 ~~Legislature.~~ The terms for members appointed pursuant to this
6 subsection shall terminate on April 2, ~~2015~~ 2030. Thereafter,
7 members shall be appointed as provided for in subsection A of this
8 section.

9 C. No person shall be eligible to be appointed to serve on the
10 Board unless the person has been awarded a high school diploma or
11 certificate of high school equivalency. No person shall be
12 appointed to serve on the Board if the person serves on a board of
13 education of a school district which is supervised by the Board
14 pursuant to Section 3-104 of this title. Any member appointed to
15 the Board shall complete the workshop requirements of a new school
16 board member pursuant to Section 5-110 of this title within thirteen
17 (13) months following or preceding the appointment of the member.
18 Notwithstanding any provision of law to the contrary, the State
19 Department of Education shall not charge any member of the State
20 Board of Education a fee for any workshop provided by the Department
21 for board members pursuant to Section 5-110 of this title and shall
22 not pay a fee to any organization or institution of higher education
23 on behalf of a member of the State Board of Education, or reimburse
24 any member of the Board for a fee paid to any organization or

1 institution of higher education, for attendance at a workshop or
2 courses to satisfy the requirements of Section 5-110 of this title.

3 D. Members of the Board shall receive necessary traveling
4 expenses while in the performance of their duties in accordance with
5 the State Travel Reimbursement Act.

6 SECTION 2. This act shall become effective July 1, 2026.

7 SECTION 3. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

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12 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/05/2026 - DO PASS,
13 As Amended and Coauthored.
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